

25NWLC46505 25NWLC46505

County: los-angeles

Division: Civil Law and Motion

Department: Y

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Case Number: 25NWLC46505 Hearing Date: July 1, 2026 Dept: Y

25NWLC46505: CAPITAL ONE, N.A. vs LARRY CLARK, JR

Tentative Ruling:

The Court has read and reviewed the Motion to Set Aside Default and Default Judgment filed by Defendant Larry Clark Jr. ("Defendant") on May 19, 2026. The Court has also reviewed all relevant court records. No opposition has been filed by Plaintiff Capital One, N.A. ("Plaintiff").

The Court notes that Default was entered by the Clerk on October 30, 2025. Default Judgment was entered by the Clerk on November 19, 2025.

The Court notes that Proof of Service of Summons by a registered process server by personal service was filed with the Court on October 28, 2025 creating a presumption of service under Evidence Code section 647. Defendant's declaration, which was signed under penalty of perjury, states that he became aware of this lawsuit after judgment had been entered. He also states that he did not have actual notice of this lawsuit before judgment was entered and acted promptly to seek relief from the Court.

Although the address on the proof of service matches the address on Defendant's motion, the Court finds that Defendant has rebutted the presumption of service and that there was no actual notice. "Actual notice," within the meaning of Code of Civil Procedure section 473.5, means genuine knowledge by the defendant, and has been strictly construed. Relief under the statute is liberally granted to defendants so that cases may be resolved on their merits. *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 547-548.

Pursuant to Code of Civil Procedure section 473(b), the Court may also set aside any judgment that was obtained by mistake or surprise. Here, even if there was actual notice, Defendant did not respond to the Complaint prior to the entry of judgment due to mistake or surprise.

Pursuant to Code of Civil Procedure sections 473(b) and 473.5, the Court GRANTS the Motion and sets aside and vacates the default judgment. The Court also vacates and sets aside the Writ of Execution issued by the Court on April 10, 2026.

The Court grants Defendant 20 days leave to file a responsive pleading.

Clerk to give notice.